



2025:AHC-LKO:80049-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 11114 of 2025

Saroj Agarwal And Another

.....Petitioner(s)

Versus

State Of U.P. Thru. Prin. Secy. Deptt. Of Energy Lko. And
4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Dheeraj Kumar Yadav
Counsel for Respondent(s)	:	C.S.C.

Court No. - 2

**HON'BLE MRS. SANGEETA CHANDRA, J.
HON'BLE AMITABH KUMAR RAI, J.**

Heard learned counsel for the petitioners and learned Standing Counsel, who appears on behalf of the State-Respondents.

This petition has been filed with the following main prayers :

"(i) Issue a writ, order or direction in the nature of mandamus commanding the respondents to forthwith restore electricity supply of the petitioners having Consumer Account No. 0581911111, which has been illegally and arbitrarily disconnected since 30.12.2024.

(ii) Issue a writ, order or direction in the nature of Certiorari, quashing the recovery proceedings initiated by Respondent No. 5 (Tehsildar, Sadar, Lucknow) pursuant to the impugned assessment, being wholly illegal, arbitrary, and without jurisdiction, as contained in Annexure No. 1 dated 22.09.2025.

(iii) Issue a writ, order or direction in the nature of certiorari quashing the provisional and final assessment proceedings; impugned assessment, inspection report, and demand notices for the demand of 286,945/- purportedly made under Section 126 of the Electricity Act, 2003 being wholly illegal, arbitrary, and without jurisdiction."

It has been submitted by learned counsel for the petitioners that the last electricity bill generated was for Rs.444/- for 32 units in Consumer Account No. 0581911111 on 07.12.2024. The petitioners paid the said electricity bill online and there were no arrears or dues outstanding against them. However,

the electricity supply to the petitioners' residence was arbitrarily and illegally disconnected by respondent no.4 on 30.12.2024. No inspection report was served upon the petitioners. The petitioner approached respondent no.3, Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, Rajajipuram Division, Lucknow on 31.12.2024, but the electricity connection was not restored. The petitioners again approached respondent no.3 on 01.01.2025. Thereafter, written complaints were sent through registered post to the Commissioner of Police and the Station House Officer, Talkatora and Misc. Case No.474 of 2025 under Section 173(4) of the BNSS was filed before the Court of the C.J.M., Lucknow on 02.01.2025. Due to the loss of electricity supply, the petitioner's family was compelled to shift to rented premises at F-274, Sector-11, Rajajipuram, Lucknow at Rs.25,000/- per month.

On 09.01.2025, a notice was issued to the petitioners under Section 126, which was actually received by the petitioner on 10.01.2025 for an assessment of Rs.86,945/- granting 15 days' time to file objections. The petitioners filed their reply stating that the notice did not indicate how the respondents had arrived at the amount of Rs.86,945/- allegedly due. The inspection report was not sent along with the notice. The inspection report dated 30.12.2024 along with the provisional assessment calculation was provided to the petitioners only on 31.01.2025 by respondent no.3. A fresh notice was thereafter issued to the petitioners under Clause 6.8 of the Supply Code reiterating the demand of Rs.86,945/- on 01.03.2025.

In the meantime, the C.J.M., Lucknow dismissed Misc. Case No.474 of 2025 on 25.03.2025 on jurisdictional grounds. The petitioners filed a fresh complaint registered as Criminal Misc. Case No. 2660 of 2025. The Court of ADJ/PC-1, Lucknow, by order dated 25.06.2025, directed the Chief Engineer, MVVNL, Lucknow (Central) to conduct an independent inquiry and submit a report on 10.07.2025. Respondent nos.3 to 5 filed their objections before the Court of ADJ/PC-1 and a compliance report was filed through departmental counsel and not by the Chief Engineer.

It was stated in the compliance report that a committee had been constituted. The Court of ADJ/PC-1, Lucknow dismissed Criminal Misc. Case No. 2660 of 2025 on technical grounds. A notice was thereafter issued by the Tehsildar, Sadar on 23.09.2025 demanding Rs.86,945/- for recovery. Hence, this petition has been filed.

Learned counsel appearing for the respondents has pointed out that upon checking the premises, electricity theft was found and therefore the checking report along with the provisional assessment was provided to the petitioners. The petitioners did not submit any reply or objections. In pursuance of such provisional assessment and the opportunity given for personal hearing as required under paragraph 6.8 of the Electricity Supply Code, when the petitioners failed to appear, the assessment was finalized. The petitioners have the remedy of filing a statutory appeal before the Divisional Commissioner.

If such an appeal is filed in the manner prescribed under the Rules, on payment of such fees as may be prescribed by the State Commission i.e. the State Electricity Regulatory Commission constituted under Section 82 of the Electricity Act, 2003, the same shall be decided on merits within six weeks of its filing.

The writ petition is **disposed of**.

December 3, 2025

Mahesh

(Amitabh Kumar Rai,J.) (Mrs. Sangeeta Chandra,J.)